



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/02/2026 - 09:00 AM

08/19/2026

4:27 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

25-PRO-01540	IN RE THE SURVIVOR'S TRUST - ARTICLE 3 OF THE 1987 TRUST AGREEMENT OF NICHOLAS P. DAPHNE AND VIRGINIA DAPHNE	PETITION FOR: REMOVAL OF TRUSTEE AND; APPOINTMENT OF SUCCESSOR TRUSTEE AND CONFIRMATION OF TRUST ASSETS- Continued from 04/06/26
Line 11[Line 7 through 11]	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: DAPHNE, NICHOLAS P. Trustor: Daphne, Virginia Guardian Ad Litem: BOHANNAN, BETH CHAGONJIAN	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. **25-PRO-01540**. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of the Trust at issue. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the Court will choose one of the names to succeed Ms. Daphne as Trustee. The Guardian Ad Litem is discharged and the request for fees and costs of \$7,714.78 are approved.

This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Parties are ordered to file status reports ten (10) days before the next hearing and any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.



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26-PRO-00415	Guardianship of Donald Israel Larios Miranda	
Line 12, 13	Petitioner: Larios Miranda, Donald Israel (AMBELIOTIS, VIRGINIA) Ward: Larios Miranda, Donald Israel Proposed Guardian: Larios Miranda, Jose Eduardo	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) The Court will GRANT both petitions and sign the order dispensing with notice for the father.		

26-PRO-00627	JOSEPH GATES vs. DANIEL JOSEPH JONES	Continued on 08/07/2026
Line 14	Petitioner: GATES, JOSEPH (Pro Se) Respondent: JONES, DANIEL JOSEPH	Request for Orders to Stop Elder or Dependent Adult Abuse
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed)		

26-PRO-00911	BLANCA ALCAIRE vs. BARBARA ANNE JARQUIO VERGARA	Continued from 08/12/26
Line 15	Petitioner: ALCAIRE, BLANCA (Pro Se) Respondent: JARQUIO VERGARA, BARBARA ANNE (GOODMAN, GRACE)	Request for Orders to Stop Elder or Dependent Adult Abuse